

106	Lopez vs. Volkswagen Group of America, Inc., 2026-01556626	DEMURRER TO COMPLAINT – MOOTED BY FILING OF FIRST AMENDED COMPLAINT
107	Luther v. Zahedi	OFF CALENDAR
108	Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC, 2023-01325570	OFF CALENDAR - WITHDRAWN
109	Munguia vs. BMW of North America, LLC, 2025-01453458	MOTION FOR TERMINATING SANCTIONS BMW of North America, LLC (“BMW”), request an order imposing terminating sanctions against Plaintiff Maribel Munguia Plaintiff and her counsel of record, Quill & Arrow LLP, pursuant to CCP§§ 2023.010(d), 2023.030(d), and 2025.450(d) for their willful failure to (1) appear for deposition and (2) make the Subject Vehicle available for inspection, in violation of this Court’s March 3, 2026 Order (ROA 75). In the alternative, BMW requests the Court impose issue sanctions, evidentiary sanctions, and monetary sanctions in the form of attorneys’ fees and costs incurred as a result of Plaintiff and her Counsel’s failure to comply with the Court’s order and their misuse of the discovery process. A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 (“Lopez”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (Ibid.) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (Ibid.) The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th